

23STCV09743 23STCV09743

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C07%2F16%2F2026

Source SHA-256: 6f0d5cf6342f4c2426911b4f5467efdd8c68ae96b4fee8e24ff1f970a5affc5f

Case Number: 23STCV09743 Hearing Date: July 16, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:38 PM on July 15, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 15, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff attorney sued Defendants for

failure to pay attorney's fees for legal services performed in the underlying action.

This is an action for a trial de novo following non-binding fee dispute arbitration.

(Bus. & Prof. Code, § 6204.)

The Court entered judgment on the arbitration award. Defendants William M. Dorfman dba Century City Aesthetic Dentistry and William M. Dorfman, DDS move for attorneys' fees.

TENTATIVE RULING

Defendants

William M. Dorfman dba Century City Aesthetic Dentistry and William M. Dorfman, DDS's motion for attorney's fees is GRANTED in the reduced amount of \$48,610.

ANALYSIS

Motion For Attorney's Fees

Requests

For Judicial Notice

Defendants' request that the Court take judicial notice of the following court records is GRANTED: March 16, 2026, Court's Ruling Order re: (1) Plaintiffs' Petition to Vacate Arbitration Award (DENIED); (2) Defendants' Petition to Confirm Arbitration Award (GRANTED, with correction); and April 6, 2026, Order and Judgment Confirming Arbitration Award.

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendants

William M. Dorfman dba Century City Aesthetic Dentistry and William M. Dorfman, DDS move for attorneys' fees pursuant to Bus. & Prof. Code § 6204(d) and Civil Code § 1717.

(d) The party

seeking a trial after arbitration shall be the prevailing party if that party obtains a judgment more favorable than that provided by the arbitration award, and in all other cases the other party shall be the prevailing party. The prevailing party may, in the discretion of the court, be entitled to an allowance for reasonable attorney's fees and costs incurred in the trial after arbitration,

which allowance shall be fixed by the court. In fixing the attorney's fees, the court shall consider the award and determinations of the arbitrators, in addition to any other relevant evidence.

(Bus. & Prof. Code § 6204(d)[bold emphasis added].)

Here,

Plaintiffs are the party who sought a "trial after arbitration" by filing a Complaint for payment of attorney's fees and the Court granted Defendants' motion to compel arbitration. Because Plaintiff did not obtain a judgment more favorable than that provided by the arbitration award, Defendants as "the other party" are the prevailing party to whom the Court may in its discretion award reasonable attorney's fees and costs incurred in the trial after arbitration. (Bus. & Prof. Code § 6204(d).)

Per

the Declaration of Carl I. S. Mueller filed on June 27, 2023 in support of the Motion To Compel Arbitration, he indicates the following:

6. In or around

September of 2022, Dorfman initiated non-binding fee arbitration through the Los Angeles County Bar Association under the Mandatory Fee Arbitration Act ("MFAA") to attempt to resolve the fee dispute between Dorfman and Kaufman. The hearing in the MFAA arbitration occurred on March 28, 2023, and an award of \$16,750 was issued in Kaufman's favor on April 19, 2023.

(Mueller Decl., ¶ 6.)

The

Kaufman Plaintiffs thereafter filed the Complaint in this action on May 1, 2023. On April 18, 2024, the Court granted Defendants' motion to compel arbitration.

Following

attempts by Plaintiffs to obtain an order disqualifying the arbitrator and reconsideration of its denial, and to vacate the arbitration award, on April 6, 2026, the Court entered judgment as follows:

Defendant, William

M. Dorfman, dba Century City Aesthetic Dentistry and William M. Dorfman, DDS's ("Defendants")
Petition for an Order Confirming an Arbitration Award came on regularly this date

for hearing by the court. Attorney of record Carl I. S. Mueller appeared on behalf of Defendants and Barry B. Kaufman appeared on behalf of himself and Plaintiff Law Offices of Barry B. Kaufman, APC, and Barry B. Kaufman, in pro per. After consideration of the moving and opposing papers, evidence, and arguments of counsel, and good cause appearing, the Court orders as follows:

1. Plaintiffs'

Petition to Vacate Arbitration Award is DENIED.

2. Defendants'

Petition to Confirm Arbitration Award is GRANTED.

3. Pursuant to

Code of Civil Procedure section 1286.2(a)(4), the Court corrects the arbitration award by reducing the amount of attorney's fees awarded by \$65,000.00, representing fees incurred in trial court proceedings beyond the arbitrator's authority.

4. The Final Arbitration

Award of Arbitrator Jan Frankel Schau, Esq., dated October 30, 2025, is CONFIRMED AS CORRECTED, and judgment shall be entered in conformity with the corrected award. A true and correct copy of the Final Arbitration Award of Arbitrator is attached hereto as Exhibit A.

The Final Arbitration Award of Arbitrator Jan Frankel Schau, Esq., dated October 30, 2025, having been confirmed as corrected by Order of this Court entered on March 16, 2026.

IT IS ADJUDGED that Defendants and Respondents William M. Dorfman, dba Century City Aesthetic Dentistry, and William M. Dorfman, DDS, shall recover from Plaintiffs and Claimants Law Offices of Barry B. Kaufman, APC, and Barry B. Kaufman, jointly and severally, as follows:

Attorney's Fees: \$129,645.37

Costs: \$38,433.98

For a total judgment of \$168,079.35.

Based upon

the foregoing, the Court has discretion to award reasonable attorney's fees and

costs incurred by Defendants in the trial after Plaintiffs failed to obtain a judgment more favorable than the MFAA award. (Bus. & Prof. Code § 6204(d).)

Defendants

seek an award of \$97,052.50 in attorneys' fees.

The determination

of reasonable amount of attorney fees is within the sound discretion of trial courts.

(PLCM Group v. Drexler (2000) 22 Cal.4th

1084, 1095; Akins

v. Enterprise Rent-A-Car Co. (2000) 79 Cal.

App. 4th 1127, 1134.) "The determination of what constitutes a reasonable

fee generally 'begins with the 'lodestar,' i.e., the

number of hours reasonably expended multiplied by the reasonable hourly rate...." "[T]he lodestar

is the basic fee for comparable legal services in the community; it may be adjusted

by the court based on factors including, as relevant herein, (1) the novelty and

difficulty of the questions involved, (2) the skill displayed in presenting them,

(3) the extent to which the nature of the litigation precluded other employment

by the attorneys, (4) the contingent nature of the fee award...." (Graciano

v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In

setting the hourly rate for an attorney fees award, courts are entitled to consider

the rate of "fees customarily charged by that attorney and others in the community

for similar work." (Bihun v. AT&T Information

Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour],

overruled on other grounds by Lakin v. Watkins

Associated Indus. (1993) 6 Cal. 4th 644, 664.) The burden is on the party seeking attorney fees

to prove reasonableness of the fees. (Center

for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th

603, 615.)

The Court has broad discretion in determining

the amount of a reasonable attorney's fee award which will not be overturned absent

a "manifest abuse of discretion, a prejudicial error of law, or necessary findings

not supported by substantial evidence." (Bernardi

v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of

the amount of attorney's fees awarded in detail; identifying the factors considered

in arriving at the amount will suffice. (Ventura

v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Defendants argue that this Court reduced

the arbitrator's award by \$65,000.00 because these were incurred in trial court proceedings for opposing the motion to disqualify and the motion for reconsideration, which was outside the scope of the arbitrator's authority. This did not include the time spent on the Code Civ. Proc. § 128.7 sanctions motion. Defendants also incurred attorney's fees after the arbitration included, including the Petition to Confirm Award, opposing Plaintiff's Petition to Vacate the Arbitration Award and several ex parte applications filed by Plaintiffs.

The Court has examined the billing invoices attached as Exhibit G to the Declaration of Carl I.S. Mueller. The Court approves the hourly rates of \$125 (staff), \$325 and \$450 as reasonable. (Mueller Decl., ¶¶ 15 – 20.) The Court will award Defendants' reasonable attorney's fees for the work incurred with the following:

Motion to Disqualify (filed by Plaintiffs on October 9, 2024):
\$18,595

Motion for Reconsideration (filed by Plaintiffs on March 18, 2025):
\$4,092.50

Petition To Confirm Arbitration Award (filed by Defendants on
November 19, 2025): \$7,652.50

Petition to Vacate Arbitration Award (filed by Plaintiffs on February
3, 2026): \$11,025

Ex Parte Application for Temporary Stay of Arbitration Pending
Ruling on Arbitration Motion (filed by Plaintiffs on July 23, 2025): \$1,755

Ex Parte Application for Order Vacating Hearing Date on Defendants'
Petition to Confirm Arbitration Award (filed by Plaintiffs on December 3, 2025):
\$1,890

Motion For Attorney's Fees (filed on June 4, 2026): \$3,600

The total amount of reasonable attorney's fees for the foregoing
is \$48,610.

"A
trial court is not required to state each charge it finds reasonable or unreasonable.

A reduced award might be fully justified by a general observation that an attorney overlitigated a case.” (Karton v. Ari Design & Constr., Inc (2021) 61 Cal.App.5th 734, 744-45.)

As such Defendants’ motion for attorney’s fees is GRANTED in the reduced amount of \$48,610.